European Union
European
Social Fund

SUMMARY OF FUNDING

Organisation Name: 10017577 Co Ltd **UKPRN:** 10017577

Master Contract Number: ESFA-110324

	Allocation			
1 August 2021 to 31 July 2022	**Contract Ref**	**Aug 21 - Mar 22**	**Apr 22 - Jul 22**	**Total**
ESFA AEB - Adult Skills (procured from Aug 2021)	AEBA-4985	£59,727	£25,584	£85,311
of which Learner Support		£31,424	£12,113	£43,537
ESFA AEB - National Skills Fund (procured from Aug 2021)	NSF-1348	£61,170	£34,009	£95,179
of which Level 3 Offer for 24 year olds and over		£32,999	£14,764	£47,763
of which Learner Support		£28,171	£19,245	£47,416
ESFA AEB - Short Term Funding Initiatives (procured from Aug 2021)	STFI-2065	£147,389	£83,646	£231,035
of which Short Term Funding Initiative 1		£45,342	£25,966	£71,308
of which Short Term Funding Initiative 2		£32,561	£16,657	£49,218
of which Short Term Funding Initiative 3		£45,746	£23,250	£68,996
of which Short Term Funding Initiative 4		£23,740	£17,773	£41,513
			Total:	£411,525

Total Funding for this contract: **£411,525**

Date: Monday, March 28, 2022 12:33 PM

SCHEDULE 1: SPECIFICATION & MONITORING

ESFA ADULT EDUCATION BUDGET CONTRACT FOR SERVICES 2021/22 SPECIFICATION

In addition to the Definition contained in Clause 1 (Definitions) of this Contract, in this Schedule 1: Specification & Monitoring the following words shall have the following meanings:

Definitions and links to additional information

"AEB"	Means Adult Education Budget, the rules of which will be the rules that govern the funding for awarded Contracts.
"Apprentice"	Means an employee who works under an Apprenticeship Agreement
"Apprenticeship"	Means a job for and Apprentice with an accompanying skills development programme. Further education and skills: Apprenticeships - detailed information - GOV.UK (www.gov.uk)
"Apprenticeship Agreement"	Means (a) an approved English apprenticeship as defined by Section A1 of the Apprenticeships, Skills, Children and Learning Act 2009; or (b) an apprenticeship agreement within the meaning given in section 32 of the Apprenticeship, Skills, Children and Learning Act 2009 as it applies in relation to England by virtue of provision made under section 115(9) of the Deregulation Act 2015.

"Contract Allocation"	Means The value of funding allocated to successful contractors under a Contract from this procurement. The Contract Allocation is the specific amount allocated to the Contractor as a consequence of the contract award allocation process as set out in the Funding Agreement contained in Schedule 2 (Payments).
"Devolved areas"	Refers to the mayoral combined authorities and Greater London Authority responsible for administering their own AEB and therefore not covered by this procurement. A full list of AEB devolved areas can be found at: Adult education budget (AEB) devolution - GOV.UK (www.gov.uk)
"ESFA"	Means The Education and Skills Funding Agency through which the Department is acting in relation to this Contract.
"ESFA AEB Funding Rules"	Means The rules specifically relating to the delivery of adult education as incorporated in the ESFA AEB Funding and Performance Management Rules, in force at the time of contract award. The ESFA AEB Funding Rules for 2021-22 will be published prior to contract award. The current version is available, for reference purposes, here: Adult education budget (AEB) funding rules 2020 to 2021 - GOV.UK (www.gov.uk) The Contractor shall note that each amended and updated version of the ESFA AEB Funding Rules shall form part of this Contract as if it was the version referred to at the Agreement Date.
"ESOL"	Means English for Speakers of Other Languages as detailed at: ESOL qualifications: requirements - GOV.UK (www.gov.uk)

"Exceptional Learning Support"	Means Learning support funding to meet the costs of putting in place a reasonable adjustment for a Learner who requires more than £19,000 in a Funding Year. The Contractor must submit a claim form for Exceptional Learning Support as detailed at Exceptional learning support - cost form - GOV.UK (www.gov.uk)
"Funding Rates and Formula Rules"	Means Adult education budget (AEB): funding rates and formula 2021 to 2022 - GOV.UK (www.gov.uk)
"Learning Aims Reference Service"	Means As detailed: Learning Aims Search (fasst.org.uk)
"Level"	Means 'Level' refers to the level of knowledge and understanding and skills required, and that all regulated qualifications are assigned a Level. As detailed: What qualification levels mean: England, Wales and Northern Ireland - GOV.UK (www.gov.uk)
"Local Flexibility"	Means delivery of flexible tailored provision for adults, including qualifications and components of these and/or non-regulated learning, up to Level 2
"Matrix Standard"	Means As detailed: The matrix Standard | Business Accreditation Standard

"NCS"	Means National Careers Service Careers advice - job profiles, information and resources | National Careers Service
"NSF"	Means National Skills Fund National Skills Fund - GOV.UK (www.gov.uk)
"NEET"	Means Those individuals who are Not in Education, Employment or Training.
"Performance Management Rules"	Means The Performance Management Rules as contained in the ESFA AEB funding rules in force at the time of contract award (see above). The Contractor shall note that the Department may update and amend the Performance Management Rules at any time during the Contract Period. The Contractor shall further note that each amended and updated version of the Performance Management Rules shall form part of this Contract as if it was the version referred to at the Agreement Date.
"Programme"	Means The programme implemented by the Contractor for delivery of Adult Education in accordance with the requirements of the Contract and pursuant to the successful delivery of which the Department shall pay the Contractor the Contract Allocation.
"Provider"	Means An organisation, other than the Contractor, that receives funding directly from the ESFA as a consequence of the procurement in which the Contractor was awarded this Contract.

"Provision"	Means General, technical, and non-regulated learning as defined in the ESFA AEB Funding Rules. (as above)
"Qualifications"	Means Either those from the Regulated Qualifications Framework ("RQF") or an Access to Higher Education Diploma recognised and regulated by the Quality Assurance Agency ("QAA").
"Services Start Date"	Means The date on which the Contractor must commence the Services, being 1 August 2021.
"Sub-Contracting guidance"	Means As detailed at: Subcontracting: using funding to offer education and training - GOV.UK (www.gov.uk)
"Sub-Contracting Funding Rules"	Means Post-16 education subcontracting: using funding to offer education and training - GOV.UK (www.gov.uk)
"SWAP"	Means Sector-based work academy programme Sector-based work academy programme: employer guide - GOV.UK (www.gov.uk)

What this procurement will buy

1. The purpose of this Contract is to provide funding for AEB provision for adults aged 19 and over. This provision aims to engage adults in learning which provides the skills and knowledge they need for work, progression in work, an Apprenticeship or further learning.

2. This Contract will procure the following Services:

   2.1. Statutory entitlements:
   - English and maths, up to and including Level 2, for individuals aged 19 and over, who have not previously attained a GCSE grade A* - C or grade 4, or higher, and/or
   - First full qualification at Level 2 for individuals aged 19 to 23,

and/or

- First full qualification at Level 3 for individuals aged 19 to 23.
- Information technology ('digital') skills, up to and including Level 1, for individuals aged 19+, who have digital skills assessed at below Level 1.

2.2. **Local Flexibility** which supports delivery of flexible tailored provision for adults, including qualifications and components of these and/or non-regulated learning, up to Level 2, including ESOL and SWAP.

Expansion of DWP's SWAP: there is a need to focus on measures that support the unemployed into work. SWAP does this directly through Job Centres and their work coaches. SWAP helps employers with immediate and future job needs by upskilling job seekers to fill locally identified vacancies. A SWAP placement has three main components: pre-employment training, work experience placements and a guaranteed job interview. The AEB funds the pre-employment training component.

2.3. **Supporting funding**: Individuals who are furthest from learning and/or work may need extra support to address certain barriers that prevent them engaging or continuing learning. This support is funded through the AEB as follows:

- Learning support – available to providers to meet the cost of making reasonable adjustments, as part of the Equality Act 2010, for learners who have an identified learning difficulty or disability, to achieve their learning goal, and/or
- Learner support – available to providers to support learners with a specific financial hardship, such as childcare or residential costs associated with learning.

2.4. In addition to the provision set out above, the Contract Services will also support post Covid-19 recovery through the **National Skills Fund Level 3 Adult Offer** as described in the AEB funding and performance management rules. From April 2021, any adult aged 24 and over who wants to achieve their first Level 3 qualification, which is equivalent to A levels or a technical certificate or diploma, is able to access hundreds of fully funded courses – please note that this list is subject to additions, so we advise providers regularly check here for updates. From April 2022, any adult who is unemployed or earning under the national living wage annually (£18,525) will be eligible regardless of their prior qualification level in line with the AEB funding and performance management rules. This will be a ringfenced fund so any Contract awarded Level 3 funding will be required to deliver the committed level.

3. The Contracts that are awarded as a result of this procurement will include the ESFA policies and methodologies for funding that are in force at the point of contract award. As such, the ESFA funded AEB Funding Rates and Formula 2021/22 will be published prior to contract award. In the meantime, for point of reference, please see the 2020/21 version of the ESFA funded AEB Funding Rates and Formula for 2020/21.

The SERVICE REQUIREMENTS (Service/s)

4. The Contractor shall deliver the Services in accordance with the Contract, including but not limited to this Specification, and as set out in the ESFA AEB Funding Rules.

5. The Contractor must be ready to recruit eligible Learners onto this Service from the Services Start Date of 1 August 2021.

6. The Contractor shall ensure equality of opportunity throughout the Programme for those who may be from more disadvantaged backgrounds and/or who are long term NEET. This shall be in accordance with the Equality Act 2010 and may include, but not be limited to those with special educational needs and/or disabilities (SEND/LDD), those from Black, Asian and minority ethnic backgrounds (BAME), those who are lesbian, gay, bisexual, transgender or queer (LGBTQ) and care leavers.

7. Where the Contractor wants to use Qualifications and/or their components, these must be from the Regulated Qualifications Framework (RQF), and be available on Find a Learning Aim. Qualifications and components confirmed as eligible for local delivery are in the 'local flexibility' category.

8. The Contractor shall support eligible Learners as set out in the ESFA AEB Funding Rules.

9. The legal basis for this Service is Section 2 of the Employment and Training Act 1973.

QUALITY OF DELIVERY

10. The Contractor shall deliver eligible provision as set out in the ESFA AEB Funding Rules.

11. The Contractor shall ensure effective referrals into and transitions out of the Programme working with local partners, including Jobcentres and NCS to support Learners.

Outcomes for Learners

12. The Contractor shall be aware that the same methodology is used for calculation of the sustained positive destination rate as was used in 2013/14. As set out in the Outcome Based Success Measures

publication. In 2017/18 78% of learners had a sustained destination into either employment, or learning, or both in the following year. This rate remained unchanged from 2016/17.

13. As the AEB Programme continues, the Department wants to maintain the quality of provision and learner outcomes that have developed since 2014, therefore the Contractor shall achieve the best possible outcome for Learners.

Record Keeping

14. The Contractor shall ensure they have the capacity and capability for data management and reporting to the standards set out in the Contract. The record keeping and evidence requirements the Contractor shall comply with are contained in the ESFA AEB Funding Rules.

15. Throughout the Contract Period the Contractor shall submit data as required pursuant to the Contract and ensure systems have the capacity to monitor progress of Learners.

Delivery to Learners in Greatest Need

16. The Contractor shall stimulate interest from Learners who are in greatest need of Adult Education opportunities, giving due consideration to those Learners who are most remote from employment opportunities, including as a consequence of Covid-19.

17. Where identified, the Contractor will put in place reasonable adjustments to support eligible Learners with identified learning difficulties and/or disabilities by using Learning Support and Exceptional Learning Support where applicable, as set out in the ESFA AEB Funding Rules.

18. The Contractor shall be aware that some individuals may need extra financial support to address certain barriers that prevent them engaging or continuing learning. This support is funded through the ESFA AEB Funding Rules.

Information, Advice and Guidance for Learners

19. The Contractor shall provide information, advice and guidance that is clear and easily accessible to Learners and will help Learners to understand the opportunities and support available to them about education, training and connected matters (including employment) so that Learners are clear what opportunities the training will provide for them:

    a) Where one of the main objectives of the Provision is to deliver information and advice, the Contractor must achieve the Matrix Standard accreditation within six (6) months of the Agreement Date and maintain such accreditation for the Contract Period; and

b) If the information and advice is embedded as part of the delivery of the Provision the Contractor shall work towards achieving the matrix Standard accreditation within six (6) months of the Agreement Date; and

c) Where the Provision is delivered by a sub-contractor on behalf of the Provider, the requirements set out in paragraphs 19(a) and 19(b) above must be applied to the sub-contractor. This does not apply where the Contractor retains responsibility for the delivery of information, advice and guidance to the Learners.

d) It is the responsibility of the Contractor to ensure any sub-contractor delivering the Services on its behalf has matrix Standard accreditation.

e) The Contractor shall be aware that, once achieved, matrix Standard accreditation is valid for three (3) years. The Contractor shall demonstrate its continuous improvement via annual continuous improvement checks with the matrix Standard assessor.

Outputs

20. The Contractor shall:

a) Recruit the number of eligible Learners in each area specified in the Volumes and Values spreadsheet as accepted by the Department and in accordance with the Contractor's Contract Allocation;

b) Deliver the eligible Provision at volumes commensurate with the Level 3 and/or AEB funding as set out in the Contractor's Contract Allocation;

c) Deliver the eligible Provision from the Learning Aims Reference Service as set out in the ESFA AEB Funding Rules and, where appropriate, to the requirements set by the Awarding Organisations between the Services Start Date and the Expiry Date;

d) Ensure all Qualifications are approved for funding on Find a Learning Aim;

e) Ensure any non-regulated learning is eligible for funding in accordance with the ESFA AEB Funding Rules;

f) Ensure they use the allocated Funding in the Funding Year as per the ESFA AEB Funding Rules;

g) At all times comply with the ESFA AEB Funding Rules in delivering the Provision.

21. The Contractor shall deliver the Service in a way that ensures:

    a) Value for money;

    b) The protection of public funds;

    c) The effective delivery of a high-quality service for Learners appropriate to their needs; and

    d) Meets the public benefit test.

Performance Management

22. The Contractor shall deliver the Service as set out in the Contract generally and as more specifically set out in this Specification and the Performance Management Rules.

Administration

23. The Contractor shall submit Learner data to the Department to comply with Clause 23 (Submission of Learner Data).

24. The Contractor shall complete the Learner's Qualification on or before the planned end date in the data submitted in the ILR. Where the Contractor misses this date, the Department may consider this a Minor Breach of the Contract.

25. The Contractor shall keep the Department informed of any changes to their bank details.

The Department

26. The Department will pay for the satisfactory performance and eligible activity of the Provision as set out in Schedule 2 (Payments).

27. The Department will monitor the Contractor's performance as set out in Schedule 1B Monitoring to this Specification.

28. The Department will monitor the recruitment of eligible Learners onto this Service by volume and location.

29. The Department reserves the right to:

    a) make additional funding allocations to the Contractor as budget becomes available at Performance Management Review points;

    b) make additional funding allocations to the Contractor to address gaps in provision of starts for eligible Learners in regions or local areas; and/or

c) modify future years' allocations to address new priorities and subject to budget availability.

SCHEDULE 1B: MONITORING

PROCURED ADULT EDUCATION BUDGET

Monitoring of ILR Submission

1. The Department will monitor and review the data submitted under Clause 23 (Submission of Learner Data) of this Contract to ensure that payments are made in accordance with the requirements set out in "Financial Assurance: Monitoring the funding rules for apprenticeships and adult skills".

2. The Department will publish monitoring reports via submit Learner data Submit learner data (fasst.org.uk). The Contractor must access the monitoring reports every month and amend any errors for the next submission by taking the actions specified in the report user guide. Failure to amend the data as required will constitute a Minor Breach of Contract in accordance with Clause 39 (Minor and Serious Breach) of the Contract.

3. If served with notice of a breach, the Contractor must correct data or supply the Department with evidence within the period specified in the notice. This evidence can include digital copies of documents such as Learner files, commitment statements or employer declarations. The Contractor shall be aware that annotated spreadsheets or notes are not acceptable as evidence.

4. Where data is incorrect in the final data submission of the academic year, the Department will recover the payments associated with the incorrect data.

Procured Adult Education Budget - Programme Funding Reconciliation

5. The Department will restrict payment under this Contract against the Financial Year and Funding Year set out in Schedule 2 (Payments).

6. Where the delivery within a Financial Year fails to meet the delivery profile or where the delivery within a Financial Year would result in the overall Contract Allocation being exceeded, the Department reserves the right at its absolute discretion to vary the Contract accordingly to balance funding and delivery in the respective years by means of a variation (i.e. "paying for capping").

7. The Contractor shall be aware that reconciliation payments or recoveries may extend beyond the end of the Contract Period.